processing committee at industry body PHDCCI, says requirements for salt, sugar and fat can vary significantly from person to person, depending on factors such as age, occupation, physical activity, geography and climatic conditions. "For a country as diverse as India, uniformly standardising such requirements may not necessarily serve the best interests of consumers," he says.

Industry also fears that consumers may not see an aggressive red hexagon as a warning to "consume this nutrient with caution" but, as one expert put it, "simply as this food is bad for you". The All India Food Processors' Association (AIFPA), which represents more than 600 FMCG firms, including Haldiram, Coca-Cola and ITC, has filed an affidavit in the apex court, seeking a further scientific review of the proposed framework. It argues that the FOPL thresholds should be based on serving size—the amount a person would typically consume at one time—rather than the recommended 100 grams or 100 ml.

Costs are a factor, too. Rashida Vapiwala, founder of LabelBlind, a digital food-labelling solutions company, says changing packaging across thousands of products involves more than altering a computer design. New printing plates, cylinders or dies may be required, and if the dimensions change, manufacturers may need new moulds as well. Yet Vapiwala believes that cost alone cannot be an argument against clear information. Food labels are the first point of communication between a manufacturer and the consumer and must therefore be accurate and credible. "It should not just be a regulatory requirement but seen from the lens of a critical public health imperative," she says. The need for greater scrutiny is underscored by LabelBlind's own study of 586 packaged products across 227 brands. It found that one in five claims, and more than half of all health-related claims, did not comply with food-labelling guidelines.

The regulatory battle itself is more than a decade old. The FSSAI's 2022 draft proposed an Indian Nutrition Rating based on a Health Star Rating ranging from half a star to five stars. Health practitioners and consumer organisations strongly opposed the proposal, arguing that positive nutritional components could offset excessive levels of sugar, salt or fat and produce a respectable overall score. In their view, this risked giving unhealthy foods a misleading health halo.

DANGERS OF OVERSIMPLIFICATION

Now the pendulum has swung towards warnings, but that raises another concern. In trying to make nutrition easier to understand, could India end up making it too simplistic? While supporting the principle of moving crucial nutritional information from the back to the front of the pack, an industry food expert says he differs with public-health campaigners who want to turn that information into a traffic-light judgement. "It can't be a universally accepted thing. A sportsperson requires different [nutrition], a diabetic [something] different," he says.



"FSSAI has proposed a red label on food packages, which is stricter than most other countries, which have only a black label"

— RAJIT PUNHANI
CEO, FSSAI

Before attaching a danger symbol, therefore, regulators need a scientifically robust answer to the most basic question: how much is "high"? "Unless you define what is high in fat, salt and sugar, these red-light, green-light things cannot be finalised," he says. His preferred formula is transparency without oversimplification: "This contains 30 per cent sugar. This contains 10 per cent salt. Then let the consumer take a decision."

India already follows this philosophy for certain products. Blended edible oils must disclose their constituent oils, while coffee-chicory products must declare the proportion of each. The same principle could be extended to the nutrients consumers most need to watch.

Others, however, are less sympathetic to industry resistance. They argue that companies already comply with stringent consumer-information requirements in other markets and cannot reasonably demand a lower standard for India. Singh puts it bluntly: "The irony is, they are doing it in Europe and North America. Why can't they do it here? Are we less of consumers? We are paying the same money."

STRIKING THE RIGHT BALANCE

Experts acknowledge that the FSSAI cannot—and should not—prevent people from buying high-sugar or otherwise unhealthy foods. What they need is enough information to make that choice knowingly. That distinction is crucial. India does need a credible FOPL regime, but simplicity must not come at the cost of distortion. The thresholds need a strong scientific foundation, rooted in Indian dietary guidelines and consumption patterns. Regulators must settle whether warnings should be based on total or added sugar and fat. They also need to address serving sizes, differences between food categories, legitimate exemptions and the time manufacturers will need to change their packaging.

There is an even larger issue waiting in the wings. India has yet to define ultra-processed foods (UPFs) for regulatory purposes, even as a growing body of research links high UPF consumption with obesity, diabetes, cardiovascular disease and other non-communicable diseases. The Economic Survey itself has suggested that the FSSAI consider bringing UPFs under regulation, with a clear definition, standards and stricter labelling requirements. Ultimately, FOPL is not about the State telling Indians what they may or may not eat. It is about something more fundamental: giving consumers the information they need to know what they are eating. ■